

Practice 9L – Transfer and Exchange of Land

N/A

- ☐ Documentation of transfer agreements
- ☐ Information documenting that new holder can provide ongoing protection and stewardship of conservation values
- ☐ Appraisal summary
- ☐ Documentation of donor intent

Practice 10A – Tax Code Requirements

- ☐ Written documentation that the landowner was notified of tax code requirements, if donation (may be part of letter provided to the landowner to seek independent legal and financial counsel)
- ☐ Evidence that the organization reviewed the project against federal and/or state requirements, if donation

Practice 10B – Appraisals

- ☐ Letter or other written documentation that the landowner was notified of the appraisal requirements, if donation (may be part of other written communication to landowner)
- ☐ Letter or other written documentation from land trust requesting a copy of the appraisal or explaining land trust policy on involvement in donated easements, if donation
- ☐ Copy of the appraisal summary

*Questions 11A through 11I for conservation easement files only:*

Practice 11A – Funding Easement Stewardship

- ☐ Stewardship fund calculation
- ☒ Indication that a stewardship contribution was received (such as a donor acknowledgement letter), that a pledge is being tracked or that a plan is in place to secure the funds (include the plan)

ENDOWMENT FUND

Practice 11B – Baseline Documentation Report

- ☒ Baseline documentation report
- ☐ Baseline map (may be the same map as attached in “general” above)

Practice 11C – Easement Monitoring

- ☐ Monitoring reports from at least the last five monitoring visits (or since date acquired if acquired within last five years)
- ☐ Copy of summary or other most recent post-monitoring information sent to the landowner

Practice 11D – Landowner Relationships

- ☐ Documentation of the landowner's invitation to the monitoring visit and explanation of the monitoring procedures provided to the landowner

*If the easement property has changed hands:*

- ☐ Record of meeting with the new landowner

Practice 11E – Enforcement of Easements

*If the easement has been violated:*

- ☒ Record of how the organization addressed the violation
- ☐ Indication that the violation was resolved according to land trust policy

*Letter from Pres to Droste family (neighbors)*

Practice 11I – Amendments

*If the easement has been amended:*

- ☐ Record of the amendment
- ☐ Indication that amendment was completed according to land trust policy

*N/A*

*Questions 12A through 12D for fee-owned property files only:*

Practice 12A – Funding Land Stewardship

- ☐ Management or stewardship fund calculation
- ☐ Indication that a management or stewardship contribution was received (such as a donor acknowledgement letter), that a pledge is being tracked or that a plan is in place to secure the funds (include the plan)

*N/A*

Practice 12C – Land Management

- ☐ Property land management plan (or table of contents if it is a long and detailed plan)
- ☐ Management plan map (may be same map as attached in "general" above)

Practice 12D – Monitoring Land Trust Properties

- ☐ Property monitoring/inspection reports from at least the last five inspection visits (or since date acquired if acquired within last five years)
- ☐ Record of resolution of any management problems

Additional Information

The organization is welcome to include any additional information that may help the Commission understand the project in question, including correspondence with the landowner, minutes or notes from internal discussions on the project, press releases, etc. Please list any additional documents in the final checklist provided with the project file.

## SUBORDINATION AGREEMENT

WHEREAS, Nathaniel S. Coolidge as to part and Nathaniel S. Coolidge and Camilla C. Coolidge as tenants by the entirety, as to part, are the owners of premises situated on Topsfield Road in Boxford, Essex County, Massachusetts (the "Premises"), which are more fully described in a deed to them from Kayo T. Ford, dated October 4, 1966, recorded with Essex County South District Registry of Deeds, Book 5398, Page 365;

WHEREAS, Shawmut Bank, N.A. with its principal place of business at One Federal Street, Boston, Massachusetts, is the holder (hereinafter referred to as "Holder") of a mortgage securing an Equity Line of Credit Agreement on the Premises, which mortgage is dated March 23, 1989, recorded with said Deeds, Book 9943, Page 108; and

WHEREAS, said Nathaniel S. Coolidge has granted a Conservation Restriction to BTA/BOLT, Inc. on portions of the real estate referred to above by instrument dated November 22, 1995, to be recorded herewith;

NOW, THEREFORE, for One Dollar (\$1.00) consideration the Holder hereby agrees to hold its said mortgage and its Equity Line Credit Agreement and the claims secured thereunder subject and subordinated to the provisions of the aforesaid Conservation Restriction granted to said BTA/BOLT, Inc.

IN WITNESS WHEREOF, Shawmut Bank, N.A. has caused its corporate seal to be hereto affixed and to these presents to be signed in its name and behalf by ELIZABETH BLANCHET, its Vice-President, on this 14 day of December, 1995.

SHAWMUT BANK, N.A.

By



ELIZABETH BLANCHET Vice-President

122195

#27

8

13333

26 A  
82

COMMONWEALTH OF MASSACHUSETTS

Suffolk, ss.

December 14, 1995

Then personally appeared the above-named *Elizabeth Blancher*, Vice President, and acknowledged the foregoing instrument to be the free act and deed of Shawmut Bank, N.A., before me,

*Mary E. McManus*  
Notary Public  
My commission expires: *5/31/96*

MASSACHUSETTS  
FIA/BOLT, INC.  
310 State Street  
Boston, MA 02109

Mr. Mansueti B. Coolidge  
42 Tapscott Road  
Boston, MA

Dear Mr. Mansueti:

Please be advised that this office represents Mansueti B. Coolidge, of the Town of Boston, Massachusetts. In 1991, Mr. Coolidge submitted a petition to the Board of Conservation Restrictions to the Town of Boston. They were a response to the FIA/BOLT ASSOCIATION, INC. Mr. Coolidge wishes to place part of the portion of the small area where his house is located) and remainder of the property under Conservation Restriction. In order to do so, he has requested that I submit the Conservation Restriction (as currently drafted) to the various interested parties so that they may review the Conservation Restriction for content and make any suggestions for changes, amendments, additions or deletions. Once a preliminary approval has been received, the original Conservation Restriction will be submitted to the respective parties for final approval, execution and, subsequent thereto, recording with the Essex South District Registry of Deeds.

The proposed Conservation Restriction on the remainder of the Coolidge property is being granted to FIA/BOLT, INC., with a subsequent vesting in ESSEX COUNTY GREENBELT ASSOCIATION, INC. in the event that FIA/BOLT, INC. should cease to exist or fail to be qualified for the income tax deduction.

In order to proceed with the preliminary review, I am enclosing copies of the following documents:

1. Proposed Conservation Restriction. Please note that this Conservation Restriction relates to 40 acres of the "back land" owned by Mr. Coolidge.

# ARDIFF & MORSE, P.C.

ATTORNEYS AT LAW

ONE CORPORATE PLACE

55 FERNCROFT ROAD

DANVERS, MA 01923

(508) 774-7123

FAX (508) 774-7164

774-7123

RALPH E. ARDIFF, JR.  
GEORGE E. MORSE  
MALCOLM F. MacLEAN III  
ROBERT L. HOLLOWAY, JR.  
ROBERT P. YEATON  
JOHN S. LEGASEY  
DAVID BAER  
ROBERT C. McCANN  
DENISE C.S. WOODRUFF  
PAUL R. SCHNEIDER  
KATHLEEN P. DWYER  
JEFFREY B. LOEB  
NANCY A. S. ATTAYA  
LISA STERN TAYLOR  
REBECCA A. BACKMAN

JEAN CAREY DAVIS  
GARY C. BUBB  
CYNTHIA M. SULLIVAN \*  
CERISE JALELIAN  
CABOT J. LEWIS  
STEPHEN J. DROHOSKY  
PETER E. BERNARDIN  
MARY ELLEN WELCH ROGERS †  
STEVEN E. GURDIN ‡

OF COUNSEL:  
RICHARD G. PICHETTE  
JOHN M. CUNNINGHAM ◊

\* Also admitted to NH Bar  
† Also admitted to ME Bar  
‡ Also admitted to NY Bar  
◊ Also admitted to NH, IL and DC Bar

September 1, 1995

Ms Nancy Merrill  
BTA/BOLT, Inc.  
20 Cross Road  
Boxford, MA 01921

RE: Nathaniel S. Coolidge  
42 Topsfield Road  
Boxford, MA

Dear Ms. Merrill:

Please be advised that this office represents Nathaniel S. Coolidge of Boxford, Massachusetts. In 1991, Mr. Coolidge subjected a portion of the real estate at 42 Topsfield Road to Conservation Restrictions. They were granted to ESSEX COUNTY GREENBELT ASSOCIATION, INC. Mr. Coolidge wishes to place (with the exception of the small area where his house is located) the remainder of his property under Conservation Restriction. In order to do so, he has requested that I submit the Conservation Restriction (as currently drafted) to the various interested parties so that they may review the Conservation Restriction for content and make any suggestions for changes, modifications, additions or deletions. When preliminary approval has been received, the original Conservation Restriction will be submitted to the respective parties for final approval, execution and, subsequent thereto, recording with the Essex South District Registry of Deeds.

The proposed Conservation Restriction on the remainder of the Coolidge property is being granted to BTA/BOLT, INC., with a subsequent vesting in ESSEX COUNTY GREENBELT ASSOCIATION, INC. in the event that BTA/BOLT, INC. should cease to exist or fail to be qualified for the income tax deduction.

In order to proceed with the preliminary review, I am enclosing copies of the following documents:

1. Proposed Conservation Restriction: Please note that this Conservation Restriction relates to 40 acres of the "back land" owned by Mr. Coolidge.

Ms. Nancy Merrill  
September 1, 1995  
Page 2

The Conservation Restriction for the additional acreage immediately adjacent to his home would be identical to the enclosed Conservation Restriction with some minor changes to the reference to "adjacent land".

2. **Black Lined Copy:** The enclosed black lined copy, together with the "revision list", shows the changes from the 1991 Conservation Restriction. I am enclosing the black lined copy for your convenience in comparing the prior Conservation Restriction to the new, proposed Conservation Restriction for the remaining land.

I will plan on contacting all of the respective parties during the week of September 11, 1995, to receive preliminary approval of the Conservation Restriction. I will then incorporate all of the suggestions, with the approval of Mr. Coolidge, and will circulate the original Conservation Restriction (together with the final survey plans which are being completed) for review, execution and recording.

It is essential to Mr. Coolidge that the Conservation Restrictions be approved and recorded prior to the end of calendar year 1995. Therefore, I would appreciate your review of the enclosed documents so that I can incorporate any changes during the week of September 11, 1995, file the appropriate applications for approval and process the recording of the Conservation Restriction as soon as possible.

Thank you for your anticipated cooperation and assistance in this matter.

Very truly yours,

Robert C. McCann

*Vacature*

*Land Vact -*

/kko

Enclosures

# ARDIFF & MORSE, P.C.

ATTORNEYS AT LAW

ONE CORPORATE PLACE

55 FERNCROFT ROAD

DANVERS, MA 01923

(508) 774-7123

FAX (508) 774-7164

RALPH E. ARDIFF, JR.  
GEORGE E. MORSE  
MALCOLM F. MacLEAN III  
ROBERT L. HOLLOWAY, JR.  
ROBERT P. YEATON  
JOHN S. LEGASEY  
DAVID BAER  
ROBERT C. McCANN  
DENISE C.S. WOODRUFF  
PAUL R. SCHNEIDER  
KATHLEEN P. DWYER  
JEFFREY B. LOEB  
NANCY A. S. ATTAYA  
LISA STERN TAYLOR  
REBECCA A. BACKMAN

JEAN CAREY DAVIS  
GARY C. BUBB  
CYNTHIA M. SULLIVAN  
CERISE JALELIAN  
CABOT J. LEWIS  
STEPHEN J. DROHOSKY  
PETER E. BERNARDIN  
MARY ELLEN WELCH ROGERS  
STEVEN E. GURDIN

OF COUNSEL:  
RICHARD G. PICHETTE  
JOHN M. CUNNINGHAM

\* Also admitted to NH Bar  
† Also admitted to ME Bar  
‡ Also admitted to NY Bar  
◊ Also admitted to NH, IL and DC Bar

October 27, 1995

Mr. Joel Learner  
Director of Division of Conservation Services  
100 Cambridge Street  
14th Floor  
Boston, MA 02202

RE: Nathaniel S. Coolidge  
Boxford CR No. 11

Dear Mr. Learner:

You will find enclosed the following:

1. Draft of the Conservation Restriction modified to include your comments as well as comments of other interested parties.
2. Application Form signed by Mr. Coolidge.
3. USGS Topographical Map showing locus and its relationship to the previous Conservation Restrictions granted by Mr. Coolidge.
4. The survey plans for both parcels being placed under Restriction.
5. Copies of Articles of Incorporation of Boxford Trails Association, Inc.
6. Copy of Articles of Amendment to Boxford Trails Association, Inc. changing the name to BTA/BOLT Inc.
7. Copy of letter dated April 23, 1982, from the District Director of the Internal Revenue Service certifying the exempt status of the Boxford Trails Association, Inc. (now BTA/BOLT Inc.). Please note that the tax identification number of BTA/BOLT Inc. is 04-2649404.

Mr. Joel Learner  
October 27, 1995  
Page 2

8. Black lined copy of the Conservation Restrictions (including a revision list) showing the changes which have been made.

Please note that rather than submit two separate Conservation Restrictions, the land which is being subjected to the Conservation Restrictions on the two separate plans is included in the description portion of the Conservation Restriction on the first page.

It is my understanding that you have photographs in your file from the prior Conservation Restriction Application by Mr. Coolidge. In the event that you need additional photographs, please advise me of the same.

Would you please advise me whether there is any additional documentation necessary for you to complete your review of the proposed Conservation Restriction. If the Conservation Restriction is satisfactory, I will have the original signed by Mr. Coolidge, BTA/BOLT Inc. and the Selectmen of the Town of Boxford and will forward the duly executed Conservation Restriction to you for your execution, return to me and subsequent recording in the Essex South District Registry of Deeds.

I look forward to hearing from you in regard to the enclosed draft of the Conservation Restriction.

Very truly yours,



Robert C. McCann

/kko

Enclosures

## CONSERVATION RESTRICTION

15  
2 PLANS

The undersigned, NATHANIEL S. COOLIDGE, of Boxford, Essex County, Massachusetts, in consideration of one dollar (\$1.00) and other good and valuable consideration, hereby grants, without covenants, to BTA/BOLT, INC. a Massachusetts not-for-profit corporation having its principal office at 20 Cross Road, Boxford, Essex County, Massachusetts, a Conservation Restriction on two certain parcels of land, as follows:

(1) That certain parcel of land being the "CONSERVATION RESTRICTION AREA" containing 40+/- acres, more or less, designated "CONSERVATION RESTRICTION AREA 40+/- ACRES" as shown on a "CONSERVATION RESTRICTION PLAN OF LAND IN BOXFORD, MA. PROPERTY OF NATHANIEL S. COOLIDGE" dated August 9, 1995, having a Scale: 1" = 100', drawn by Hancock Survey Associates, Inc. which Plan is recorded herewith; and,

(2) That certain parcel of land being "PARCEL A - AREA C" containing 44.94 +/- acres, more or less, designated "PARCEL A - AREA C AREA = 44.94+/- AC." as shown on a "CONSERVATION RESTRICTION PLAN OF LAND IN BOXFORD, MA. PROPERTY OF NATHANIEL S. COOLIDGE" dated August 21, 1995, having a Scale: 1" = 100', drawn by Hancock Survey Associates, Inc. which Plan is recorded herewith;

(said plans being hereinafter referred to collectively as the "Plan" and said parcels of land being hereinafter referred to collectively as the "Restriction Area").

Said Nathaniel S. Coolidge and his successors in title to the Restriction Area are hereinafter called the "Grantor" and BTA/BOLT, INC. and its successors and assigns are hereinafter called the "Grantee".

WHEREAS, the Restriction Area, in conjunction with the Grantor's adjoining land, house, other structures and abutting land owned and protected by the Essex County Greenbelt Association, provide a corridor of protected open space and continuous trails and comprise a pleasing vista of the central facilities and surrounding land of a typical historic New England farm;

WHEREAS, a significant portion of the Restriction Area, in conjunction with the Grantor's adjoining land, is presently included within the Boxford Historic District and abuts over 62 acres of land presently owned by the Grantor and subject to Conservation Restrictions previously granted to ESSEX COUNTY GREENBELT ASSOCIATION, INC.;

WHEREAS, the Restriction Area is part of an estimated 200 acres of contiguous, privately owned woodland bounded by Topsfield Road, Depot Road, Bare Hill Road and I-95 in Boxford with a well used trail network and also is part of one of the six original lots laid out when the Town of Boxford was settled in the 1640's;

WHEREAS, the Restriction Area being in a natural and largely undeveloped state is frequently used by others in conjunction with the use of a network of trails on adjoining and other properties by others for hiking, horseback riding, cross country skiing and the observation of wild animals and birdlife, particularly around Still Pond located on the adjoining land of the Grantor;

WHEREAS, the Town of Boxford, through its Conservation Commission and the Boxford Trail Association, are currently studying the feasibility of a program to encourage Boxford residents to grant conservation easements on important trail segments;

WHEREAS, the Restriction Area contains and consists of upland forest, vegetated wetlands and trails and is a distinctive Massachusetts landscape as defined in the Landscape Inventory of the Department of Environmental Management, embodying the special character of the region in which it is located;

WHEREAS, a portion of the Restriction Area is located within a Conservancy District of the Town of Boxford; X

WHEREAS, the 1994 Open Space and Recreation Plan of the Town of Boxford delineates the protection of existing trails for passive recreation as an objective of the Town and identifies conservation restrictions as one of the techniques by the Town to implement its open space objectives. X

NOW, THEREFORE, in order to protect and preserve the Restriction Area in perpetuity for conservation purposes, and thereby provide significant scenic, aesthetic, scientific, educational and recreational values to the public generally, the Grantor hereby conveys to the Grantee a Conservation Restriction within the meaning of Chapter 184, Sections 31 through 33 of the General Laws of Massachusetts.

The terms of this Conservation Restriction are as follows:

1. **Prohibited Activities.** Except as otherwise herein provided, or expressly permitted by the Grantee in writing, the Grantor shall not conduct or carry out nor permit others to conduct or carry out any of the following activities on the Restriction Area:
  - (a) Construction or placing of any buildings, mobile homes, roads, signs, tennis courts, windmills, solar panels, antennae, billboards or other advertising, utility poles and wires or other structures (temporary or permanent) on, above or below the ground;
  - (b) Dumping or placing of soil or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, solid or chemical waste or unsightly or offensive materials or the installation of underground storage tanks;

- (c) Excavation, dredging or removal of loam, peat, sand, gravel, soil, rock or other mineral substances or natural deposits in such manner as to alter the surface topography of the Restriction Area;
- (d) Any development or other improvement for purposes of residential, commercial, industrial or institutional use;
- (e) Use of motorized vehicles of any nature or kind (including but not limited to cars, trucks, motorcycles, all-terrain vehicles and ski mobiles), except such as may be necessary in the exercise of the Grantor's reserved rights or for property maintenance, security patrol or to fight fire;
- (f) Activities detrimental to flood control, water or soil conservation or erosion control;
- (g) Cutting, removal or destruction of trees, forbs, grasses, shrubs or other vegetation; or
- (h) Other acts or uses which in the reasonable opinion of the Grantee are detrimental to preservation of the Restriction Area in an open and undeveloped condition.

2. Reserved Rights. Notwithstanding anything contained in Paragraph 1 above, the Grantor reserves for himself and his successors in title the right to conduct or permit the following activities on the Restriction Area subject to all applicable laws then in effect:

- (a) The right to conduct or permit all forms of agriculture, silviculture, horticulture, and floriculture, as commonly construed, on a commercial basis or otherwise, including but not limited to the following:
  - (i) the cultivation and harvesting of crops, flowers, berries, hay and other plant products and the production of compost materials in accordance with recognized natural resource conservation and farm management practices, provided, however, that any expansion of the fields shall be only with the approval of the Grantee;
  - (ii) the cultivation and, subject to a forest cutting plan prepared by a professional forester and approved by the Grantee, harvesting of timber, firewood and other wood products in accordance with recognized natural resource conservation and forest management practices;
  - (iii) the raising and grazing of livestock in accordance with recognized natural resource conservation and animal husbandry practices; and

- (iv) the making of non-structural improvements, including but not limited to the erection of fences and creation of open water ponds, in furtherance of the foregoing activities.
- (b) The maintenance of the Restriction Area including, without limitation, the planting, selective cutting and pruning and periodic mulching with organic matter of trees, shrubs, brush or other vegetation to improve the scenic view and to implement disease prevention measures, provided all such cut vegetation shall be removed promptly from the Restriction Area, except for such material as the Grantor may wish to compost, which material may remain in the Restriction Area for composting provided that such composting is accomplished in a reasonably customary manner and is not in plain view from outside of the Restriction Area;
- (c) In connection with the use of the Grantor's single family residence and accessory buildings now existing or hereinafter constructed on land of the Grantor abutting the Restriction Area, the installation, maintenance, replacement and use of underground utilities, for the transmission of water, sewage, gas, telephone, electricity and other such utilities, provided that the Grantee be given prior notice of such installation, and provided further that the area served by such utilities shall be limited to the Grantor's Remaining Land, and provided further that the surface of the Restriction Area shall be restored to the same condition that it was in prior to the disturbance thereof;
- (d) Activities designed to enhance the ecological, scenic, or natural historical values of the Restriction Area, or to enhance the awareness of such values, including but not limited to the creation of footpaths, the placement of informative signs, benches, small shelters and the like; and
- (e) Such other activities as are proposed by the Grantor and expressly approved by the Grantee as consistent with the purposes of this Conservation Restriction.

3. Access by Grantee. The Grantee through its duly designated officers, directors, members, employees or agents shall have the right to enter the Restriction Area at reasonable times and in a reasonable manner for the purpose of inspecting the Restriction Area, ensuring compliance with the terms of this Conservation Restriction and preventing, abating or remedying any violations thereof. Grantee hereby agrees to save Grantor harmless and to indemnify him from all injury, loss, claims, and damage to any person or property arising from the exercise by Grantee, or any person acting by, through or under Grantee, of any rights granted by this instrument, unless arising from any omission, fault, gross negligence or other misconduct of Grantor.

4. Use by Others. Except as provided in the foregoing paragraph, no rights to enter the Restriction Area are granted hereby to the Grantee, the public

generally, or to any other person. Notwithstanding the above, the Grantor recognizes that certain trails located within the Restriction Area are presently used by other persons to pass and repass by foot, horseback, snowshoe and cross country ski for purposes of quiet outdoor recreational and educational activities. Grantor hereby consents to the continuance of such activities, provided: (a) that any such activity shall be limited to daylight hours only; (b) that all such activities shall be confined within the limits of established trails (which shall be deemed to mean the existing trails unless any such trails are relocated, and then the trails so established by the Grantor in the future); (c) that no motor vehicles of any kind shall be permitted (except such areas as may lie within the bounds of any access road defined in paragraph 2(a)); (d) that no camping, hunting, trapping or discharge of firearms shall be conducted; (e) that no dumping, waste disposal or littering of any kind be allowed; (f) that the picking of flowers, gathering of wood or any other disturbance of the natural order is strictly prohibited; and (g) that no activity of a commercial nature be allowed. The Grantor hereby reserves the right (i) to periodically post the Restriction Area against entry and take such other measures as are necessary and appropriate to prevent the ripening of prescriptive rights in the Restriction Area, (ii) in consultation with the Grantee, and upon the Grantee's prior approval, to materially alter the location of existing trails within the Restriction Area (with non-material alterations and relocation being permitted without such consultation and approval), provided that as so relocated, access to and passage through the Restriction Area is not substantially impaired, and (iii) to formally establish trails for foot and horse travel across the Restriction Area in collaboration with Grantee in its program to lay out a network of recreational trails throughout the Town. To the extent permitted by law, the Grantor and the Grantee hereby expressly disclaim any duty to maintain the Restriction Area or warn persons who may enter upon the same. The Grantor shall, to the extent permitted thereunder, receive the benefit of the limitation of liability as set forth under Chapter 21, Section 17C of the General Laws of the Commonwealth of Massachusetts.

5. Assignment by Grantee. The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee and its successors and assigns shall have the right to assign its right, title and interest hereunder to a governmental unit as defined in Section 170(c)(1) of the Internal Revenue Code or to a "qualified organization" as defined in Section 170(h)(3) of the Internal Revenue Code or as defined under the General Laws of the Commonwealth of Massachusetts, Chapter 184, Section 32, provided that, as a condition of such assignment, the assignee is capable and committed to hold this Conservation Restriction and to enforce its terms for conservation purposes. In the event Grantee elects to so assign this instrument, Grantee shall first offer to make such assignment to ESSEX COUNTY GREENBELT ASSOCIATION, INC. of 82 Eastern Avenue, Essex, Essex county, Massachusetts and then to the Conservation Commission of the Town of Boxford. In the event that the Grantee shall cease to exist, by dissolution or for any other reason, the Conservation Restriction created herein shall immediately vest first in said ESSEX COUNTY GREENBELT ASSOCIATION, INC., and, if not accepted by said ESSEX COUNTY GREENBELT ASSOCIATION, INC., then to the Conservation Commission of the Town of Boxford.

6. Representations of Grantor and Grantee. Grantor represents that he is the sole owner of the Restriction Area and that there are no prior easements, reservations, restrictions, mortgages or other encumbrances of record affecting the same. Grantee represents that it is a not-for-profit corporation, that it has a perpetual existence, that it is organized and operated for the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it qualifies as a "Qualified Organization" as that term is defined in Section 170(h)(3) of the Internal Revenue Code of 1954, as amended.

7. Required Notifications. Grantor shall notify Grantee in writing at least thirty (30) days before conveying the Premises, or any part thereof or interest therein (including a lease). The Grantee shall notify the Grantor in writing at least thirty (30) days before its assigns this Conservation Restriction.

Whenever notice to or approval by the Grantee is required under the provisions of Paragraphs 1 or 2, the Grantor shall notify the Grantee in writing not less than sixty (60) days prior to the date the Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where the Grantee's approval is required, the Grantee shall grant, withhold or condition its approval in writing within sixty (60) days of receipt of the Grantor's written request therefor.

8. Proceeds from Extinguishment. Grantor and Grantee agree that the donation of this Conservation Restriction gives rise for purposes of this paragraph to a property right, immediately vested in Grantee, with a fair market value determined by multiplying the current fair market value of the Premises unencumbered by this Conservation Restriction (minus any increase in value attributable to improvements made after the date of this grant) by the ratio of the value of this Conservation Restriction at the time of this grant to the value of the Premises, without deduction for the value of this Conservation Restriction, at the time of this grant. Such proportionate value of Grantee's property right shall remain constant. If any change in conditions ever gives rise to the extinguishment or other release of the Conservation Restriction under applicable law, then Grantee, on a subsequent sale, exchange or involuntary conversion of the Premises, shall be entitled to a portion of the proceeds equal to such proportionate value, subject, however, to any applicable law which expressly provides for a different disposition of proceeds. Whenever all or any part of the Premises or any interest therein is taken by public authority under power of eminent domain, or if all or any part of this Conservation Restriction is otherwise extinguished by act or public authority, then Grantor and Grantee shall cooperate in recovering the full value of all direct and consequential damages resulting from such action. All related expenses incurred by Grantor and Grantee shall first be paid out of any recovered proceeds, and the remaining proceeds shall be distributed between Grantor and Grantee in

shares equal to such proportionate value. Grantee shall use its share of the proceeds in a manner consistent with the conservation purpose set forth herein.

9. Eminent Domain. In the event that all or any portion of the Restriction Area is taken by eminent domain or judicial proceedings in the nature of eminent domain so as to extinguish the restrictions imposed hereunder, the Grantor and Grantee shall fully cooperate in such proceedings to recover the full value of the interests taken and all incidental or direct damages resulting from the taking. All expenses incurred by the Grantor and the Grantee in such action shall be paid out of the recovered proceeds. The remaining recovered proceeds (including, for purposes hereof, proceeds from any lawful sale of the property unencumbered by the restrictions hereunder) shall be distributed to the Grantor and the Grantee in shares proportional to the fair market value of their interest in the Restriction Area on the date of execution of this Conservation Restriction. For this purpose, the Grantee's interest shall be the amount, expressed as a percentage interest, by which the fair market value of the restricted land immediately prior to the execution of this Conservation Restriction is reduced by the restrictions imposed hereby. The Grantee shall use its share of the proceeds in a manner consistent with the conservation purposes set forth herein.

10. Binding Effect; Enforcement. The burdens of the Conservation Restriction shall be deemed to run with the Restriction Area and shall be enforceable against the Grantor, his heirs, executors, personal representatives, assigns and his successors in title in perpetuity. This Conservation Restriction shall be in addition to and not in lieu of any other restrictions or easements of record affecting the Restriction Area. Nothing contained in the Conservation Restriction shall impose on the Grantee any duty to maintain or require that the Restriction Area be maintained in any particular state or condition, notwithstanding its acceptance hereof.

In the event that a breach of this Conservation Restriction by the Grantor or by a third party comes to the attention of the Grantee, the Grantee shall notify the Grantor in writing of such a breach. The Grantor shall, within 30 days after receipt of such notice, undertake actions reasonably calculated to cure the conditions constituting such a breach. If the Grantor fails to take such corrective action, the Grantee may at its discretion undertake any and all actions reasonably to cure said breach. In addition, the Grantee shall have the right to enforce this Conservation Restriction by proceedings at law or in equity, including the right to obtain injunctive relief. In the event a court of competent jurisdiction decrees that the Grantor has caused or allowed a breach of this Conservation Restriction, the Grantor shall bear the costs of corrective action, including repair or restoration as appropriate, and shall reimburse the Grantee for legal fees incurred in the enforcement of this Conservation Restriction. Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantee, and any forbearance by the Grantee to exercise its rights under this Conservation Restriction shall not be deemed or construed to be a waiver. If any provision of this Conservation Restriction shall to any extent be held invalid, the remainder shall not be affected.

Inasmuch as there is no monetary or other consideration of substance for this Conservation Restriction, no Massachusetts documentary stamps are affixed hereto.

IN WITNESS WHEREOF, the said Nathaniel S. Coolidge has hereunto set his hand and seal this 22<sup>nd</sup> day of November, 1995.

Nathaniel S. Coolidge  
Nathaniel S. Coolidge

## COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

November 22, 1995

Then personally appeared before me the above-named Nathaniel S. Coolidge and acknowledged the foregoing instrument to be his free act and deed.

Robert C. McCand  
Notary Public  
My Commission Expires: Oct. 4, 1998

BTA/BOLT, INC. hereby accepts this Conservation Restriction and agrees to be bound by its terms.

BTA/BOLT, INC.

Dated: NOV. 25, 1995

By: Nancy N. Merrill  
Nancy N. Merrill, President

Dated: NOV 25, 1995

By: George Horner  
George Horner, Treasurer